



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB 11 1991

DOT-E 10540

1. Sun Refining and Marketing Company, Philadelphia, Pennsylvania, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a flammable liquid residue for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a DOT specification tank car tank with defective interior heater coils, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Sun Refining and Marketing Company's application of February 5, 1991, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to preclude serious economic loss.

3. HAZARDOUS MATERIALS (Descriptor and class). Petroleum Naptha (Noene), classed as a flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Petroleum naptha.

5. REGULATION AFFECTED. 49 CFR 173.29(c) (1) and (2).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. The heater coil inlet and outlet caps must be applied while the tank car tank is in transit.

8. SPECIAL PROVISIONS.

a. Shipment must be between GATX Terminals, Philadelphia, Pennsylvania and Triple C Railcar Repair, Wilmington, Delaware, a distance of 25 miles, using the most direct route available.

b. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

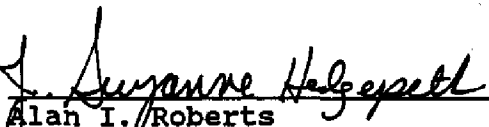
c. The marking requirements of Part 107 Appendix B to Subpart B do not apply.

d. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. February 28, 1991.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 11 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FRA.